

SENATE No. 1526

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act putting patients over profits in hospital licensure.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/24/2025</i>

SENATE No. 1526

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 1526) of James B. Eldridge for legislation to put patients over profits in hospital licensure. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act putting patients over profits in hospital licensure.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 51G of chapter 111 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following paragraph:-

3 (9) No original license shall be granted, or renewed, to establish or maintain an acute-care
4 hospital, as defined in section 25B, if the entity operating the acute-care hospital is organized as
5 a for-profit entity; provided, however, that any acute-care hospital that, as of April 1, 2024, is
6 operating as a for-profit entity shall be exempt from the requirements of this subsection. An
7 exempt acute-care hospital under this subsection shall maintain its exempt status after a transfer
8 to any transferee and subsequent transferees. A transferee or subsequent transferee of an acute-
9 care hospital that is exempt from the requirements of this subparagraph shall be issued a license
10 if the transferee otherwise satisfies all other requirements for licensure under this chapter.